



CHAPTER clv.

An Act to amend the Acts relating to the supply of gas in London and to make further provisions with reference thereto. A.D. 1905.
[4th August 1905.]

WHEREAS the Gas Light and Coke Company the South Metropolitan Gas Company and the Commercial Gas Company have been respectively authorised to supply gas within several districts within the administrative county of London and various Acts of Parliament have from time to time been passed containing provisions with respect to such supply :

And whereas the mayor aldermen and commons of the city of London in relation to any place within the city of London and the liberties thereof and the Metropolitan Board of Works in relation to any other place within the limits of the metropolis as defined by the Metropolis Management Act 1855 are by the Gas Light and Coke and other Gas Companies Acts Amendment Act 1880 (in this Act referred to as "the Act of 1880") declared to be the controlling authorities within the meaning of the said Act and powers were thereby conferred upon the mayor aldermen and commons of the city of London and the Metropolitan Board of Works with respect to the enforcement of the provisions of the said Act and various Acts relating to the said companies :

And whereas by the Local Government Act 1888 the powers, duties and liabilities of the Metropolitan Board of Works were transferred to the London County Council :

And whereas it is expedient that certain provisions of the Act of 1880 and of other Acts relating to the said companies with respect to the testing for impurity of the gas supplied

A.D. 1905. by the companies should be relaxed and that the said Acts should be amended in other particulars as provided by this Act:

And whereas certain provisions of the Metropolis Gas Act 1860 have ceased to apply to any existing gas company and it is accordingly expedient that such provisions should be repealed:

And whereas the objects aforesaid cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

Short title
and com-
mencement
of Act.

1. This Act may be cited for all purposes as the London Gas Act 1905 and shall come into operation on the first day of January one thousand nine hundred and six.

Act of 1880
and this Act
to be con-
strued
together.

2. The Act of 1880 as amended by this Act and this Act shall be read and construed together as one Act and words and expressions to which meanings are assigned by the Act of 1880 have in this Act unless the context otherwise requires the same respective meanings.

As to burner
for testing
illuminating
power.

3. The gas referees shall from time to time prescribe the burner for testing the illuminating power of the gas supplied by the company and the chimney (if any) to be used with such burner. The burner so prescribed shall be of such a pattern (not being an incandescent or similar burner) as shall be practicable for use by the consumer and the burner and the chimney (if any) shall be the most suitable for obtaining and in making the test shall be so used as to obtain from the gas when consumed at the rate of five cubic feet an hour the greatest amount of light.

Illuminating
power.

4.—(1) The gas supplied by the Gas Light and Coke Company shall with respect to its illuminating power be such as to produce when consumed at the rate of five cubic feet an hour in the burner prescribed as hereinbefore provided a light equal in intensity to sixteen sperm candles of six to the pound and each consuming one hundred and twenty grains an hour.

(2) The gas supplied by the South Metropolitan Gas Company and the Commercial Gas Company respectively shall with

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respect to its illuminating power be such as to produce when consumed at the rate of five cubic feet an hour in the burner prescribed as hereinbefore provided a light equal in intensity to the light produced by fourteen sperm candles of six to the pound each consuming one hundred and twenty grains an hour.

(3) If on any one day the gas supplied by the company at any testing place is of less illuminating power to an extent not exceeding one candle than it ought to be the average of all the testings made at such testing place on that day and on the preceding day and on the following day shall be deemed to represent the illuminating power of the gas on such one day at such testing place.

5.—(1) Each gas examiner shall at such places and in such manner as may be from time to time prescribed by the gas referees make testings of the gas supplied by the company for the purpose of ascertaining—

As to testing for calorific power sulphur impurities and illuminating power with flat flame burner.

(i) The calorific power ;

(ii) The purity as regards sulphur other than sulphuretted hydrogen ; and

(iii) The illuminating power as ascertained by means of a flat flame burner to be prescribed from time to time by the gas referees which shall be of the best available pattern.

(2) Each gas examiner shall forthwith deliver to the controlling authority to the gas referees to the chief gas examiner and to the company a report of the result of each testing conducted by him under the provisions of this section.

(3) The company shall not be liable to forfeitures in respect of any testings made under the provisions of this section.

(4) The company shall provide and maintain at any testing place such apparatus and materials as the gas referees may from time to time prescribe and certify for use for the purposes of this section and shall give to any gas examiner access to any testing place and shall afford to him all facilities for the proper execution of his duty under this section.

(5) A gas examiner shall make in accordance with this section testings at any place prescribed as hereinbefore provided on such days (exclusive of Sundays) as the controlling authority shall direct.

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As to sulphuretted hydrogen.

6. The gas supplied by the company shall not exhibit any trace of sulphuretted hydrogen when tested in a mode to be from time to time prescribed and certified by the gas referees for testing and recording the presence of sulphuretted hydrogen which mode shall not be more stringent than the mode prescribed in Schedule A. of the Gasworks Clauses Act 1871 and section 15 of the Act of 1880 shall apply accordingly.

No liability to forfeiture for sulphur impurities other than sulphuretted hydrogen.

7. After the commencement of this Act the company shall not be liable to any forfeiture by reason of the presence in the gas supplied by the company of sulphur impurities other than sulphuretted hydrogen and the gas referees shall not prescribe or certify the amount of sulphur impurities other than sulphuretted hydrogen with which the gas supplied by the company shall be allowed to be charged.

As to pipes connecting mains with testing places.

8. The company shall connect each testing place with such main or mains as may be prescribed by the gas referees by means of one service pipe only which shall proceed direct from the main into the testing place and there shall be no pipe branch or tap in any way connected with such service pipe outside the testing place except that the company may provide a tap on the service pipe at a point outside and as near as practicable to the testing place for use in case of emergency only and such tap shall be sealed by or on behalf of the controlling authority as occasion may require in such manner that the tap cannot be used or turned without breaking the seal. The company shall give the controlling authority and persons authorised by them access at all reasonable times to such tap and in the event of the same having been used or turned shall forthwith notify the fact to the gas referees and to the controlling authority.

Appeal by company to chief gas examiner against prescription or certification of gas referees.

9. If the company think themselves aggrieved by any prescription or certificate of the gas referees they may in the case of an appeal in respect of a burner or a chimney prescribed by the gas referees under the provisions of this Act within three months or in any other case within one month from the making of such prescription or certificate appeal against such prescription or certificate to the chief gas examiner who after hearing the company and the gas referees and any other body or person whom he shall think fit may confirm amend vary or annul such prescription or certificate and his decision shall be final and conclusive.

Any prescription or certificate as so confirmed amended or varied shall be deemed to be the prescription or certificate of the gas referees in the matter or matters to which it relates.

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10. Notwithstanding anything in the Act of 1880 or in any other Act it shall not be obligatory on the controlling authority to make on Sunday any testings of the gas supplied by the company and in any case in which the controlling authority shall not make such testings on Sunday any provisions relating to the testing of the gas supplied by the company shall be read and construed as if Saturday were as the case may be the day preceding or immediately preceding or the previous day to Monday and Monday were the day following Saturday.

Sunday testing.

11. Section 12 of the Act of 1880 is hereby repealed and in lieu thereof the following provisions shall have effect (that is to say):—

Amendment of section 12 of Act of 1880.

If the company think themselves aggrieved by any report of a gas examiner they may within seven days after the day on which that report is delivered to the company appeal to the chief gas examiner who may confirm amend vary or annul such report and whose decision after hearing the parties shall be final and conclusive and the chief gas examiner shall forthwith report every such decision to the controlling authority and to the company :

If in any case the company do not appeal as aforesaid or if having appealed they withdraw the appeal the report of the gas examiner shall be final and conclusive :

In the event of the company appealing to the chief gas examiner or in the event of the company withdrawing the appeal the company shall forthwith give notice of such appeal or of such withdrawal as the case may be to the controlling authority.

12. If the chief gas examiner in giving his decision upon any appeal made to him by the company against the report of a gas examiner shall certify that the default of the company is not substantial or not due to the careless conduct of the company or their servants proceedings shall not be taken before a petty sessional court for the determination of the amount of the forfeiture to be paid by the company in respect of such default but the chief gas examiner if requested so to do by the controlling authority at the time of hearing such appeal or giving his decision

Further powers to chief gas examiner as to forfeitures.

A.D. 1905. — thereon or at any time within six months after the date of his decision may after hearing the Council and the company determine subject to the provisions of section 14 of the Act of 1880 the amount of forfeiture to be paid by the company in respect of such default.

The amount of any forfeiture fixed by the chief gas examiner under this section shall be recoverable summarily as a civil debt from the company and appropriated in the same manner as if the amount of such forfeiture had been fixed by a petty sessional court.

As to hearing in absence of parties.

13. The chief gas examiner may give his decision upon any matter referred to him under this Act without hearing any party who shall fail or neglect to attend before him after receiving not less than seven days' notice of the time and place fixed by the chief gas examiner for hearing such matter.

Amendment of section 18 of Act of 1880.

14. Section 18 of the Act of 1880 is hereby repealed and in lieu thereof the following provisions shall have effect (that is to say) :—

The report of a gas examiner (in cases where there is no report of the chief gas examiner) showing a case of defective illuminating power excessive impurity in or insufficient pressure of the gas supplied by the company or in cases where there is a report of the chief gas examiner showing such a case as aforesaid such last-mentioned report shall be conclusive evidence of the liability of the company to a forfeiture in respect thereof.

Penalty for neglect to comply with prescriptions of gas referees.

15. If the company neglects or refuses to comply with any lawful prescription or certificate of the gas referees or to provide or maintain any testing place apparatus or materials or any other matter or thing prescribed or certified therein the company shall be liable on summary conviction to a penalty not exceeding fifty pounds for each day during which such refusal or neglect continues :

Provided that no proceedings under this section shall be taken unless the Board of Trade shall after giving the company an opportunity of being heard consent thereto and—

(a) Until after the expiration of the period within which the company may under the section of this Act of which the marginal note is "Appeal by company to

“ chief gas examiner against prescription or certifica- A.D. 1905.
 “ tion of gas referees ” appeal against the prescription
 or certificate ; or

(b) If the company shall have appealed as aforesaid unless
 or until either such appeal is withdrawn or the chief
 gas examiner has given a decision thereon.

The remedy provided by this section shall be in addition to
 and not in derogation of any existing remedy.

16. Proceedings against the company in respect of any Proceedings
 forfeiture incurred under the Act of 1880 or this Act may be in case of
 commenced at any time within six months after the date of the forfeiture.
 report of the gas examiner or after the date of the report of
 the chief gas examiner on appeal or in the event of the company
 duly appealing to the chief gas examiner and withdrawing the
 appeal within six months from the date of the receipt of notice
 of such withdrawal.

17. Any report or certificate of the chief gas examiner Proof of
 purporting to have been signed by him shall for all purposes report &c.
 and to all intents be primâ facie evidence of the due making and of chief gas
 signing thereof without proof of such signature. examiner.

18. Any notice required to be given under this Act may As to service
 be served by post. of notices.

19. The Acts specified in the first column of the schedule Repeal of
 to this Act shall be and the same are hereby repealed to the Acts.
 extent specified in the second column of that schedule.

20. Sections 7 to 12 25 to 34 37 40 and 41 of the Metropolis Repeal of parts
 Gas Act 1860 are hereby repealed. of Metropolis
 Gas Act 1860.

21. The costs charges and expenses preliminary to and of Costs of Act.
 and incidental to the preparing applying for obtaining and passing
 of this Act shall be defrayed by the London County Council as
 payments for general county purposes within the meaning of the
 Local Government Act 1888.

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The SCHEDULE referred to in the foregoing Act.

Acts.	Extent of Repeal.
The Gas Light and Coke Company Act 1876 - -	Sections 25 33 37.
The South Metropolitan Gas Light and Coke Company's Act 1876.	Sections 26 34 38.
The South Metropolitan Gas Act 1900 - - -	Section 6.
The Commercial Gas Act 1875 - - -	Sections 31 34 52.
The Commercial Gas Act 1903 - - - -	The whole Act.

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